

		(Code Civ. Proc., § 430.10, subd. (c); Plant Insulation Co. v. Fibreboard Corp. (1990) 224 Cal.App.3d 781, 789.) Nonetheless, the Court exercises its inherent authority to stay the remainder of this action pending completion of the judicial reference, in order to avoid the possibility of conflicting rulings, and perhaps foster judicial economy. (Code Civ. Proc., § 187 [court's inherent authority]; Adams v. Paul (1995) 11 Cal.4th 583, 593 [court may order stay to avoid risk of inconsistent pleadings or judgments].) The Case Management Conference scheduled for 10-12-26 is VACATED. The Court sets a Status Conference re: Judicial Reference for June 7, 2027 at 9 AM. Moving parties shall give notice of all the above.
5	Lopez vs. Gyutan Tsukasa USA, Inc. 2021-01193736	Motion to Compel Deposition (Oral or Written) When a PMK designee fails to come prepared to testify on the noticed topics, the deposing party is entitled to relief. In Maldonado v. Superior Court, (2002) 94 Cal.App.4th 1390, the court held that ICG should have been ordered to bring their witnesses back to the depositions with the documents requested and with proof that the witnesses had undertaken some effort to familiarize themselves with the areas of their supposed knowledge. The court found there was no basis for denying the motion to compel in that circumstance, and the trial court's denial of the motion was error. Maldonado, id. The Maldonado court further explained that when a request for documents is made in the deposition notice, the deposition witness or someone in authority is expected to make an

	inquiry of everyone who might be holding responsive documents or everyone who knows where such documents might be held. This principle extends to the witness's substantive preparation: a PMK designee who simply claims unfamiliarity with the noticed issues has not satisfied the organization's statutory obligation under Ca. Civ. Pro. section 2025.230. The combined effect of section 2025.230 and the Maldonado holding is that an organization cannot discharge its PMK obligation by producing a witness who merely holds a title but lacks actual knowledge of or preparation on the noticed topics. Where the first PMK testified that he was not familiar with the noticed issues, the deposing party has a strong basis to move to compel a further deposition, and the court will likely grant that motion and order the organization to produce a properly prepared designee. The motion to compel further deposition responses is governed by Code of Civil Procedure section 2025.480, and must be brought within 60 days of the completion of the deposition record. <i>Weinstein v. Blumberg</i> (2018) 25 Cal.App.5th 316. The Yuriko Shikai declaration indicates that "during the course of the deposition, Mr. Abe confirmed that he had never seen the Notice (Exh. F at 131:5-19), and was not the PMQ on various matters for examination referenced in the Amended Notice of Deposition (Exh. F at 132:5 – 144:19). Because Mr. Abe and his attorney, Mr. Szymanski, had to leave for the deposition by 4:00 pm, the Deposition of Gyutan's PMQ was not concluded and it was agreed that it would be continued to another day. (Exh. F at 144:20 – 146:2.)" In opposition to this motion, the declaration of David Szymanski, attorney for Responding Party, states: "In my opinion, the motion lacks substantial justification because the transcript demonstrates that the witness answered questions within his knowledge and repeatedly explained when he lacked personal knowledge regarding the alleged accident."
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		(See Szymanski declaration, paragraph 8.) But the areas of inquiry for the PMK were not limited to where the accident occurred. It also included topics related to Mitsuwa's tender of defense and indemnity, under policies related to the accident. See Amended notice of deposition, topics 1-4. Further, it appears that the deposition ended before it was completed. [“MS. SHIKAI: So it looks like since Mr. David Szymanski had asked for the deposition to finish by 4:00 and we haven't finished the deposition; we will be continuing this deposition.”] Defendant Mitsuwa Corporation dba Mitsuwa Marketplace's motion to compel defendant Gyutan Tsukasa USA, Inc.'s PMK for deposition is GRANTED. The deposition shall take place as follows: Date: August 14, 2026 Time: 10:00 a.m. Place: Zoom The date, place or time of the deposition may be modified upon written stipulation by the parties only. Defendant Mitsuwa's request for judicial noticed is granted. Mitsuwa to give notice.
6	Chemi vs. Baraca Remodeling, Inc. 2025-01467851	1. Motion for Leave to File Amended Complaint 2. Motion to Dismiss Plaintiffs' Motion for Leave to File First Amended Complaint Plaintiffs Maricel Chemi and Gabriel Szlechtman's Motion for Leave to File a First Amended Complaint is GRANTED. (Code Civ. Proc. §473, subd. (a)(1); Atkinson v. Elk Corp (2003) 109 Cal.App.4th 739, 761 [policy of great liberality in permitting amendments]; Howard v. County of San Diego (2010) 184